

Dr. Mamta Tripathi v. State of U.P. & 6 Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 22 January 2015 · 2015 SCC OnLine All 1878 · Misc. Bench No. 12974 of 2014 · **Writ petition disposed of; application for connection to be processed on an indemnity bond**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 is in aid of the statutory duty to supply electricity cast by Section 43 of the Electricity Act, 2003. Where an occupier of premises applies for a connection but is unable to produce the owner's consent — particularly where there is a dispute between owner and occupier (here a tenant against her landlord) — the Code provides for the connection to be granted on furnishing an Indemnity Bond in the proforma of Annexure 4.2. Following the Division Bench in *Sushama Chowdhary* (itself based on the Supreme Court's *Chandu Khamaru v. Nayan Malik*), the Court directed the electricity authority (LESA) to process the tenant's application on that basis, inform her of any other requirements within two days, and take a final decision within a week of her compliance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Occupier's connection on an indemnity bond where the owner's consent is unavailable

QUESTION

Can a tenant/occupier obtain an electricity connection in her own name without the landlord/owner's consent, where there is an owner-occupier dispute?

HOLDING

Yes. Clause 4.4, which aids the s.43 statutory duty to supply, provides that where an occupier cannot produce the owner's consent — especially in an owner-occupier dispute — a connection may be granted on furnishing an Indemnity Bond (Annexure 4.2). Absence of the landlord's consent is therefore no bar; the authority must process the tenant's application on that basis, subject to her fulfilling the other legal requirements. ¶ (order)

LIMITING FACTS

Tenant since 2012 receiving supply through the landlord's connection; supply disconnected; her fresh application met only with a demand for the rent agreement and landlord's consent, which she could not furnish due to a dispute.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupier unable to produce the owner's consent (e.g. an owner-occupier dispute) is entitled to a connection on an Indemnity Bond under Clause 4.4, which serves the s.43 duty to supply; consent of the owner is not an absolute precondition. Lead authorities: *Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.*, *Chandu Khamaru v. Smt. Nayan Malik*. ¶ (order)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, 24-09-2014) Allahabad High Court (Division Bench)	Clause 4.4 of the Code is in aid of the s.43 duty to supply; an occupier unable to produce the owner's consent (owner-occupier dispute) may obtain a connection on an Indemnity Bond (Annexure 4.2), and a denial merely citing Clause 4.4 without reasons is bad.	Followed and quoted as the governing Division Bench authority. ¶ (order)	Court	Followed
<i>Chandu Khamaru v. Smt. Nayan Malik</i> AIR 2011 SC 2897 Supreme Court	An occupier/tenant is entitled to an electricity connection and the owner's consent is not an indispensable precondition; the statutory duty to supply cannot be	Relied on (via <i>Sushama Chowdhary</i>) as the Supreme Court foundation for the indemnity-bond route. ¶ (order)	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
	defeated for want of the owner's consent.			

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